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Lincoln Township Zoning Board of Appeals

Tamara McCaslin – Chair ***Jamie Lease***– Vice-Chair
Mara Kalat – Secretary ***Paula Keasey*** – Member
Jeff Simons – Township Board Rep.

Dick Hassberger – Zoning Administrator
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, March 12, 2025

The meeting was called to order by Chair McCaslin at 7:00 pm.

Roll Call:
Present – Board Members: McCaslin, Kalat, Keasey, Lease
Staff: Zoning Administrator Dick Hassberger, Recording Secretary Sherrod
Absent – Simons, excused
Public – 2

Approval of Agenda: Chair McCaslin corrected Paragraph 11, page 3 (extra zip code) in the agenda.

Public Comment: None

Approval of Minutes:
Regular Meeting minutes of Wednesday, November 13, 2024 – Tabled to the April 9, 2025 meeting.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Variance: Application for a variance was made on January 20, 2025, by Dustin Hollingshead, Blueline Builders, on behalf of Sue and Jamye Rose for property located at 1721 Arbor Drive, Lake, MI. 48632. Tax ID 010-800-085-00. He is requesting a dimensional variance approval to build an attached deck replacing the current deck which would not meet setback requirements.

Public Notice: Notice of public hearing was posted at least 15 days prior to the hearing. The following was published in *The Clare County Cleaver* on February 20, 2025:

"The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, March 12, 2025, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the Application for Zoning Variance filed by Dustin Hollingshead of Blueline Builders and Design on behalf of property owners, Jayme and Sue Rose, for a variance on the property #010-800-085-00. The property is located at 1721 Arbor Drive, Lake, Michigan 48632. This appeal is to consider the construction of a deck which does not meet zoning ordinance setback requirements. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, March 11, 2025."

Notifications by mail were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA.

Explanation of Practical Difficulty: Chair McCaslin read the following brief explanation of the practical difficulty requirements needed for a person to request a zoning variance:

The Lincoln Township Board of Appeals will follow the variance standards created by Michigan Statute and Ordinance 44 of Lincoln Township. In accordance with these standards the ZBA must determine that a Practical Difficulty exists in order to grant a variance. Practical Difficulties as identified in Section 8.7 of the Lincoln Township Zoning Ordinances ARE THE LAW. They are as follows:

A. **Practical Difficulty**: That there are practical difficulties that prevent carrying out the strict letter of this Ordinance due to unique circumstances specific to the property such as its narrowness, shallowness, shape, or topography, and which do not generally apply to other property or uses in the same

district and shall not be recurrent in nature. That a genuine hardship exists due to the circumstances are Unique to the Property.

B. **Circumstances**: That the practical difficulty or special condition or circumstance is not a result of the actions of the applicant. The variance will relate only to property described in the variance application. That granting the variance will not grant an applicant any special privilege.
C. **Ordinance Purpose Adherence**: Does this request relate to properties other than described in the Variance request?
D. **Variance Harmony**: That the variance will be in harmony with the purpose of this Ordinance and the intent of the District, including the protection of public health, safety and welfare in general and vehicular and pedestrian circulation specifically.
E. **Effects**: That the variance will not cause a substantial adverse effect upon surrounding property including property values and the development, use and enjoyment of property in the neighborhood or District.
F. **Property Use**: That strict compliance with the site development requirement in question would unreasonably prevent the owner from using the property for a permitted purpose or would render conformity unnecessarily burdensome.
G. **Minimum Variance**: That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property or mitigate the practical difficulty.

Denial of Zoning Application: The requested structure does not meet setback requirements.

Purpose: The purpose of this meeting is to determine if indicators exist to grant a variance as the zoning permit filed by the resident on January 8, 2025, was denied due to the required setbacks not being met. Application for a variance was made on January 20, 2025, by Dustin Hollingshead, Blueline Builders, 113 East Midland Road, Auburn, Michigan 48611, to allow construction of a deck which would be out of compliance with setback requirements.

Correspondence & Communications to ZBA: Chair McCaslin read an email communication from a neighbor which was addressed to Clerk Majewski.

Presentation by Lincoln Township Zoning Administrator:
Zoning Administrator Hassberger presented his reasons for denying the Zoning Permit. He read:

On January 20, 2025, a completed Application for Zoning Variance was received from Mr. Hollingshead.

Based on my visit to the property, the drawings and scale provided by Blueline, and information from Property Records, the following failures to meet or exceed the Setback Requirements of Zoning Ordinance #44 exist.

1. The main portion of the proposed deck would be set back 44 feet from the front of the lot. A setback of 50 feet is required.
2. The stairway portion of the proposed deck would be set back 29 feet from the front of the lot. A setback of 50 feet is required.
3. Based on the drawings submitted, the proposed deck and stairway would be 33 feet wide. The lot is 40 feet wide. This would result in a 3 ½ foot setback if centered. The side setback required is 5 feet.
4. The ordinance requires a setback of 10 feet between any structures on a lot. The plan indicated a setback of only 6 feet from the Shed/Boathouse.
5. Additionally, Ordinance #44 limits the Building Coverage in the R2 Zoning District to 25% of the lot area. Based on the plans submitted and property records, the proposed construction would exceed that percentage and would increase Building Coverage to 28%.

In addition to the above, the drawing indicates a new gable roof on the Shed/Boathouse which was not a part of the Zoning Application. This roof would not be allowed as it would increase the area of non-conformity of the existing non-conforming Shed/Boathouse.

The Zoning Administrator cannot support the Application for Zoning Variance.

Presentation by the Petitioner: Mr. Hollingshead reviewed the history of the project concerning safety. His proposal is to give them safe access to the boat house with a new outdoor living space which would make it easier to get from the house to the boathouse and deck.

ZBA Members Comments & Questions:

Keasey asked what type of roof was planned for; answer a low roof. She also asked about the distance of the stairs between the boat house and house.

McCaslin asked about pictures showing the measurement of the steps. She asked about the damage to the boathouse. He answered the damage to the railing which prompted the Roses to contact him for repair and more.

McCaslin asked about building new stairs entirely which would not meet setbacks. She also noted that the boathouse is already nonconforming. She said that he could repair the damage but not much more. She also noted that the new plan would make it almost impossible for fire/rescue to get by. He answered that all of that already exists and they are proposing to tear out the old and put in new in their place. McCaslin asked about the safety of the current stairs which have no handrail. She asked is there anything that makes this property unique to allow for the board to grant this appeal. He replied that he can only see a practical difficulty, but nothing that he sees as unique.

Public Comment: None

Public Comment Closed by Chair: McCaslin then opened the closed session in which there was discussion and further questions by ZBA Members without comments or questions from the public.

Chair McCaslin then closed the closed session and reopened the open session.

Without further questions or comments, McCaslin announced that the ZBA members will now work on their Finding of Facts.

ZBA Members Finalize Finding of Facts Form:
An explanation of this process is given to the applicant that after the ZBA makes and accepts a motion to deny or approve the Variance Request the applicant may wait to receive a final decision paper for court purposes. If the applicant does not want to wait for the final decision paper, please state the preferred method of receiving the final decision form, either by certified USPS mail and/or e-mail, and provide the correct addresses for each method; if the applicant chooses not to wait for the final decision paper, the decision will not be final until after the next ZBA meeting.

Motion: McCaslin made the following motion:

In regard to the Variance requested by Dustin Hollingshead, Blueline Builders on behalf of Sue and Jayme Rose, applicant, for the property at 1721 Arbor Drive, Lake, Michigan 48632, tax ID #010-800-085-00, to allow the construction of a deck, out of compliance with the setback requirement of the Lincoln Township Zoning Ordinance. I will make a motion that the Zoning Board of Appeals deny the variance request.

Roll Call Vote: McCaslin: **Yes**; Lease: **Yes**; Kalat: **Yes**; Keasey: **Yes**. Motion **Passed**; the Appeal is **Denied**

Public Comment: None

Adjournment: Lease made a motion to adjourn; Kalat seconded. Motion passed with all in favor. Meeting adjourned at 7:35 pm.

The annual meeting will be held on Wednesday, April 16, 2025, at 7:00 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary